STUDENT CONFIDENTIALITY AND INFORMED USE AGREEMENT

For students receiving counseling support and choosing to use JomLuah | REVIEW DRAFT

IMPORTANT: This is a plain-language draft for review by the university counselor, privacy officer, and legal adviser. It is not an approved legal form. It does not replace the university privacy notice, counseling consent, or emergency procedures.

Student name _____

Counselor / service _____

University / unit _____

Date _____

1. What this agreement is for

This document explains how confidentiality works in your counseling relationship and what to expect if you use JomLuah. You may ask questions, request an explanation in a language you understand, or ask for time before deciding. Choosing not to use JomLuah does not by itself affect your access to counseling.

2. What the counselor will keep private

Your counselor will handle information you share with care and limit sharing to the purposes and people allowed by applicable law, professional obligations, and the university's approved policies. Records may be accessed by authorized people who need them to provide, supervise, safeguard, or administer the service. The counselor should explain relevant practices and answer questions about who may access your records.

3. When confidentiality may have limits

Confidentiality is important, but it is not absolute. Information may need to be shared, to the extent necessary, when required or permitted by applicable law or professional duties. This can include situations such as:

- There is a serious and immediate concern that you or another person may be harmed.
- There are safeguarding concerns, including suspected abuse or risk to a child or vulnerable person, where reporting or protective action is required.
- A court order or other legal requirement applies.
- Limited consultation or supervision is needed to support safe, competent counseling, in line with professional duties and university policy.

Whenever it is safe and lawful to do so, your counselor will try to discuss a necessary disclosure with you beforehand and share only what is reasonably needed. The exact rules and reporting pathways must be confirmed by the university before this form is used.

4. If counseling takes place in a group

If this applies, participants are asked not to repeat another person's identity, story, or personal details outside the group. The counselor can set expectations, but cannot guarantee that every participant will keep information private. Tell the counselor if this risk concerns you.

JOMLUAH: WHAT TO EXPECT

Please read this separately from the confidentiality commitments that apply to your counselor.

5. JomLuah is an optional digital support tool

JomLuah provides an AI companion, private journaling, and mood reflection. It is not a human counselor, does not diagnose, and is not continuously monitored by a counselor. AI responses can be incomplete or wrong. Do not use the app to seek urgent help or assume a counselor will see a message promptly.

If you or someone else may be in immediate danger, contact local emergency services or go to the nearest emergency department. For non-urgent concerns, use the counselor's official contact channel: _____.

In Malaysia: call 999 for emergencies. Befrienders KL offers a 24-hour listening helpline at +603-7627 2929. Confirm these details and add the university's current support contacts before circulation.

6. How information is handled in JomLuah

To provide responses, chat text and relevant context are sent through the application to its configured AI provider. That provider processes the information under its own service terms and privacy practices. Do not enter information you are uncomfortable sharing with an online AI service; avoid passwords, identification numbers, and details that are not needed for support.

JomLuah stores account and wellness information in Neon Postgres. Chat content and journal photo data are encrypted in the browser before they are saved, using a key associated with your account. This protects their stored contents from someone who can only inspect the database, but it does not make the service anonymous or fully end-to-end encrypted. Chat text must be available to the application and AI provider when a reply is generated.

Journal text and metadata - such as titles, written reflections, mood, tags, profile information, and preferences - are not currently client-side encrypted. Database operators may be able to read those fields. The database may also expose account identifiers, dates, activity, and data sizes. Ask the university for the approved privacy notice to learn exactly who may access data, retention periods, deletion procedures, and how to exercise your rights.

The encryption key may be remembered on a device if you choose that option. A different device may require your account password to unlock existing encrypted content. If your password is reset or lost and no device has the key, encrypted content may be unrecoverable. Do not choose device remembering on a shared device.

7. Your choices and practical privacy steps

- Using JomLuah is optional. You may continue counseling without using the app, subject to the counselor's service arrangements.
- You can stop using the app. Ask the university how to request access, correction, or deletion and what records must be retained.
- Use a device and account you control; sign out on shared devices, protect your password, and avoid screenshots or notifications that reveal private content.
- Share only what feels appropriate. You may discuss your app use or counseling with a trusted person; this form is not intended to silence you or waive your rights.

YOUR ACKNOWLEDGMENT

Signing confirms that the points below were explained and that you had a chance to ask questions. It is not a waiver of legal rights.

[ ] I understand that counseling information is handled confidentially, subject to legal, safeguarding, safety, and professional limits explained to me.

[ ] I understand JomLuah is an AI support tool, not a counselor, emergency service, or continuously monitored channel.

[ ] I understand chat text may be processed by an AI provider, and that only chat content and journal photos are currently client-side encrypted before storage; journal text and metadata are not.

[ ] I know how to contact my counselor and where to find the university's full privacy notice, data contact, and urgent support instructions.

[ ] I had the opportunity to ask questions and may choose not to use JomLuah without this document being treated as a waiver of my rights.

Student signature	_____
Printed name	_____
Date	_____
Counselor signature	_____
Counselor name / registration	_____
Date	_____

INTERNAL REVIEW BEFORE USE - REMOVE THIS BOX FROM THE STUDENT VERSION

Confirm the university's legal name and approved privacy notice; applicable confidentiality and safeguarding exceptions; AI provider and data-processing terms; data access, retention, deletion, and complaint contacts; crisis instructions; accessibility and translation needs; and whether a separate counseling consent is required. Do not present this draft as approved until the responsible university offices sign off.

Review references: Malaysia Personal Data Protection Act 2010 (Act 709) and Personal Data Protection (Amendment) Act 2024; consult the current official text and university legal/privacy adviser. This draft is not legal advice.